STANDATA bulletin 23-BCB-004/23-FCB-005

Building/Fire

Occupancy of buildings under construction

Date Issued: January 2025

Purpose

To provide guidance for determining when occupancy of a building under construction may be allowed.

Discussion

Sentence 2.2.11.1.(1) of Division C of the National Building Code - 2023 Alberta Edition (NBC(AE)) allows for an authority having jurisdiction (AHJ) to issue an occupancy permit for a portion of a building before construction is finished. This can occur in several situations including:

- Buildings constructed and occupied in phases; or
- Additions or alterations to the building where the completed areas of the building remain in use or are occupied.

Sentence 8.1.1.1.(3) of NBC(AE) applicable to fire safety at construction and demolition sites references Section 5.6. of Division B of the National Fire Code - 2023 Alberta Edition (NFC(AE)), which requires the development of a fire safety plan. This fire safety plan should be developed in consultation with the local fire department or fire prevention personnel.

All building services, including those services for fire safety, boilers and pressure vessels, elevating devices, gas, plumbing, mechanical and electrical systems, must be considered when determining the provisions required to safeguard the occupants of a building. To assist safety codes officers and other persons with this activity, a checklist is provided below. Some of the items on this checklist may only apply to specific construction situations.

- The fire safety plan required by Sections 2.8.5.6. of Division B of the NFC(AE) and Sentence 8.1.1.1.(3) of the NBC(AE) for buildings and portions of buildings under construction shall be adapted to include provisions for the occupants and the workers to the satisfaction of the fire and building AHJ.
- The structure and enclosing walls of the building are complete up to and including the roof.
- The walls enclosing the space to be occupied are complete.
- All guards for balconies are complete.
- Stair shafts are complete for the full height of the building, including all doors between the stair shafts and adjacent floor areas.
- The fire elevator in high rise buildings is operational for all storeys up to and including the one to be occupied. The barrier-free elevator or platform-equipped elevating device is operational for all storeys up to and including the one to be occupied. See STANDATA 19-BCI-010-Elevator Operations and Accessibility.
- All fire separations and closures are complete on all storeys up to and including the storey to be occupied.
- Exits and accesses to exits are complete including fire separations, doors, door hardware, self-closing devices, guards and handrails from the uppermost storey to be occupied down to the level from which occupants will exit

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the building (or the lowest level in the basement up to the exit level if the exit serves the basement). Means of access to the building may need to be enclosed to protect the building occupants from falling objects.

- All aspects of barrier-free design outlined in Section 3.8. “Accessibility” shall be completed for all areas intended to be occupied.
- If service rooms are in operation, fire separations around the service rooms are complete and closures are installed.
- All service shafts, including closures, are complete to the floor/ceiling assembly above the storey to be occupied and have a fire separation at that assembly.
- Water supply, drain, waste, and vent systems are complete and operational for all storeys up to and including the one to be occupied. Plumbing vent systems should be completed. All unused openings in waste pipes must be effectively capped off.
- Electrical systems and equipment on each occupied floor are complete and operational. CO/Fire Alarm/detector devices and other related electronic devices should not be installed in a “construction zone” where dust can get into the electronics and reduce life span or impair proper operation.
- Emergency power supply systems are installed, operational, and connected to the equipment and appliances requiring emergency power supply. These systems shall be maintained throughout the duration of construction. Lighting in corridors, exits, and stairwells is complete for all storeys up to and including the one to be occupied.
- Standpipe, sprinkler, fire alarm, and detection systems are complete and operational for all storeys up to and including the one to be occupied and exterior connections for fire department use are installed and operational. Standpipe systems for firefighting on all unfinished floors are operational. Standpipe, sprinkler, fire alarm and detection systems shall be maintained throughout the duration of construction on all occupied floors.
- Garbage rooms, chutes, and ancillary services are complete and operational for all storeys to be occupied.
- Firefighting access routes around the building are provided and accessible.
- Floors, halls, corridors, lobbies and means of egress are free of construction materials and other hazards.
- Outside stairways and walkways are complete to all exits and entrances.
- Security items such as panic hardware and electromagnetic locks are installed at all exits and entrances.
- Mechanical systems such as heating, ventilating, and air conditioning systems serving occupied areas are complete and operational.
- If smoke control measures are required by the NBC(AE), the measures are complete and operational for all floors to be occupied, including floors designated as areas of refuge.
- Measures are taken to prevent access by unauthorized persons to parts of the building and site that are incomplete.
- Finishes in food establishments, dairy plants, and abattoirs are complete.
- Sanitary facilities are in place and functional in all areas being occupied.
- Swimming pool circulating systems in the area to be occupied are complete and operational.
- Other applicable authorities’ approval (Health, Agriculture, etc.) may be required for partial occupancy.
- Submission of professional C-Schedules for partial occupancy.

Boilers and Pressure Vessels, Electrical, Elevator, Fire, Gas, and Plumbing disciplines may provide confirmation to the Building AHJ stating that the preceding applicable safeguards are adequate and have been satisfied before permitting the use of the building or the building services by other than the constructor or subcontractors for the project.

Notwithstanding any of the preceding, the Building and Fire AHJ may accept alternate arrangements that, in their opinion, satisfy the safety requirements of the NBC(AE) and the NFC(AE).

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Code References

Division C Article 2.2.11.1.

2.2.11.1. Occupancy Before Completion (See also Article 2.4.2.4.)
1) The authority having jurisdiction may give written permission to occupy a building before completion of the project.
2) The authority having jurisdiction may place terms and conditions on the permission to occupy a building referred to in Sentence (1).
3) If occupancy of a building is permitted in accordance with Sentence (1), then the owner shall ensure that no unsafe condition exists or will exist because of work being undertaken or not completed.

Sentence 8.1.1.1.(3)

8.1.1.1. Scope
3) Fire safety at construction and demolition sites shall conform to Section 5.6. of Division B of the NFC(AE).

Section 2.8. Emergency Planning

2.8.1.1. Application
1) Fire emergency procedures conforming to this Section shall be provided for
g) demolition and construction sites regulated under Section 5.6.,

2.8.2.11. Construction and Demolition Sites
1) Except as required in Sentence (2), prior to the commencement of construction, alteration or demolition operations, a fire safety plan shall be prepared for the site that includes
a) the designation and organization of site personnel to carry out fire safety duties, including a fire watch service if applicable,
b) the emergency procedures to be followed in the event of a fire, including
i) initiating a fire warning,
ii) notifying the fire department,
iii) instructing site personnel on the procedures to be followed once the warning has been initiated, and
iv) confining, controlling and extinguishing the fire,
c) measures for controlling fire hazards in and around the *building* (see Note A-2.8.2.11.(1)(c)), and
d) a maintenance procedure for firefighting measures required in Section 5.6.
2) Where construction, alteration or demolition operations are carried out in an existing *building* that is required to have a fire safety plan conforming to this Section, the fire safety plan shall take into account the changes occurring to the *building*.

NFC(AE) Article 5.6.1.1.

5.6.1.1. Application (See Note A-5.6.1.1.)
1) This Section applies to fire safety for *buildings*, parts of *buildings*, facilities, adjacent *buildings* or facilities, and associated areas undergoing construction, alteration or demolition operations.

Note A-5.6.1.1. The degree of application should be determined in advance in conjunction with the authority having jurisdiction. In construction, alteration or demolition operations that do not pose an exposure hazard to other buildings or to occupants, the degree of application of Section 5.6. may be minimal.

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The degree of application of Section 5.6. to each operation should be determined in advance, as part of the fire safety plan for the operation, taking into consideration such issues as the size of the operation, exposure of adjacent buildings or facilities to hazards, and the site conditions. Operations can range from large multi-storey buildings to small single-storey residences and may include additions or alterations to existing buildings. NFPA 241, “Standard for Safeguarding Construction, Alteration, and Demolition Operations,” may provide information to assist in a fire safety plan as well as guidance for fire protection during construction, alteration and demolition operations.

Disclaimer:
The information in this bulletin is not intended to provide professional design advice. If professional expertise is required with respect to a specific issue or circumstance, the services of a professional should be sought.

Unless stated otherwise, all Code references in this STANDATA are to Division B of the National Building Code – 2023 Alberta Edition or the National Fire Code – 2023 Alberta Edition

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